



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

FEB 22 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9690
(THIRD REVISION)

EXPIRATION DATE: **January 31, 1998**

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Snyder Industries, Inc.
Lincoln, NE.
2. PURPOSE AND LIMITATION: This exemption authorizes the manufacture, mark and sale, until September 30, 1996, of the non-DOT specification rotationally molded crosslinked or non-crosslinked polyethylene portable tank for use in the transportation in commerce of certain Class 8 materials, Class 3 materials, Division 6.1 materials or a Division 5.1 material described in paragraph 6 below. This exemption provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.242, 173.243 and Part 178, Subparts N and O, and Part 180, Subpart D.
5. BASIS: This exemption is based on Snyder Industries, Inc.'s application dated March 31, 1994 and February 22, 1996 submitted in accordance with 49 CFR 107.105.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials authorized	Hazard Class/ Division	Identi- fication Number	Packing Group
Class 8 liquids for which a DOT-34 reusable polyethylene container is prescribed in 49 CFR Part 173, effective on September 30, 1991 , and which have no secondary hazards and a vapor pressure of no greater than 14.7 psia at 130°F.	8	as appli- cable	as appli- cable
Hydrogen peroxide solution in water containing 52 percent or less hydrogen peroxide by weight, classed as Division 5.1.	5.1	as appli- cable	as appli- cable
Class 3 liquids compatible with polyethylene which have no secondary hazards and a vapor pressure of no greater than 14.7 psia at 130°F., and have a flash point of 73° or higher; combustible liquids; and other Class 3 liquids which have been specifically identified to, and acknowledged in writing, by the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment.	3	as appli- cable	as appli- cable
Carbofuran, classed as a Division 6.1, and other Division 6.1 liquids and solids which have been specifically identified to, and acknowledged in writing, by the Office of Hazardous Materials Exemptions and Approvals prior to the first shipment.	6.1	as appli- cable	as appli- cable

7. SAFETY CONTROL MEASURES.

NOTE: Reference to 49 CFR Part 178 in the following paragraphs are references to the regulations in effect on September 30, 1991.

a. Packaging prescribed is a non-DOT specification rotationally molded portable tank having a nominal water capacity of either 110 gallons or 175 gallons, as shown on Snyder Industries, Inc., drawings number 159 and 161 dated November 17, 1986, on file with the OHMEA. Each portable tank must be made from high density crosslinkable or non-crosslinkable polyethylene which has been specifically identified and is acceptable to the OHMEA. In addition, the tank must be in compliance with the provisions of 49 CFR 178.19 except as follows:

- i. 178.19-3. - Does not apply.
- ii. 178.19-4. - Does not apply.
- iii. 178.19-6(a)- Does not apply. Instead, each portable tank must be permanently marked by embossment or with a metal certification plate permanently affixed to each tank. The marking must be in letters and numbers at least 1/4 inch high located on the side of the tank. The markings shall be understood to certify that the portable tank complies with all the requirements of this exemption and must contain at least the following information:

DOT-E 9690 portable tank
 Tank manufacturer _____
 Test pressure: 15 psig _____
 Serial number _____
 Date of manufacture (month and year) _____
 Tare weight _____ lbs.
 Rated gross weight _____ lbs.
 Capacity _____
 Do Not Stack _____
 Do Not Place Other Freight On Top of This Tank _____

iv. 178.19-7(a)(3) - Changed to read: Each portable tank shall be tested by retaining for 5 minutes, hydrostatic pressure of at least 15 psig at equilibrium without leakage or pressure drop.

v. 178.19-7(c)(2) - Does not apply.

b. Each tank must be fitted with a pressure relief device that will limit the pressure in the tanks to 15 psig and is in accordance with 49 CFR 178.253-4 except as follows:

i. 178.253-4(a) - Frangible devices are not authorized for transportation by water.

ii. 178.253-4(c)(1) - The pressure relief device must open at not less than 10 psig and not over 15 psig. The minimum venting capacity for pressure activated vents must be 6,000 SCFH at not more than 15 psig.

iii. 178.253-4(c)(3) - A fusible device that will function at a temperature no greater than 250°F may be used provided the vapor pressure in the tank at 250°F does not exceed 15 psig.

c. Portable tanks must be capable of satisfactorily withstanding the drop test and hydrostatic pressure test prescribed in 49 CFR 178.19-7(a) and the vibration test prescribed in 49 CFR 178.253-5(a)(1).

d. The minimum thickness of the portable tank, measured at any point on the container, is 0.140 inch. Other details of the shipping container must be as depicted on Snyder Industries, Inc. drawings 159,161, and C1121-1, included in the petitioner's application.

e. The portable tank must possess the chemical and physical properties as reported to the OHMEA by the petitioner's letter dated October 31, 1986.

f. Any changes in design, resin, or process methods must be approved by the OHMEA. Prototype test results for the tests required in paragraph 7.c. of this exemption must accompany any request for changes in design, resin, or process methods.

g. Reuse of any portable tank must be in accordance with the applicable requirements of 49 CFR 173.28 and 173.32(f) as modified herein. Each portable tank must be hydrostatically retested in accordance with 49 CFR 173.32(f) as applicable to DOT Specification 57 portable tanks, at a test pressure of 15 psig for 5 minutes without a drop in pressure or leakage. Any tank that fails must be rejected and may not be used again for the transportation of hazardous materials. The date of the most recent periodic retest must be marked on the tank near the tank identification markings required in 7.a.iii. of this exemption. The owner of the tank or his authorized agent must retain a written record indicating the date and results of all required tests and the name and address of the tester, until the next retest has been satisfactorily completed and recorded.

h. Portable tanks with repaired bodies are not authorized.

i. Commodities must be compatible with the polyethylene (PE) portable tank, and may not permeate the PE to an extent that a hazardous condition could be caused during transportation and handling.

j. Portable tanks for hydrogen peroxide must have a vented closure to prevent accumulation of internal pressure.

k. Any fitting used must be protected in accordance with 49 CFR 178.253-3.

l. The sides of each portable tank must be marked "KEEP THIS END UP" in two places, 180° apart, with an arrow pointing to the tank top.

m. Tanks must always be filled and shipped with the portable tank in a base as shown in Snyder Industries, Inc. drawings C1121-1 dated January 9, 1987 and D1340 dated September 11, 1987 on file with the OHMEA.

8. SPECIAL PROVISIONS.

a. Offerers for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Each portable tank must be plainly marked on both sides near the middle, in letters and numbers at least two inches high on a contrasting background, "DOT-E 9690", "Do Not Stack" and "Do Not Place Other Freight on Top of This Tank".

c. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

d. Shipments by rail must be in compliance with the requirements of 49 CFR §174.63. Portable tanks may not be transported on flatcars or trailers on flatcars, except under conditions approved by the Federal Railroad Administration.

e. No corrosive liquids for which bottom outlets are prohibited by the IM Tank Table may be transported by vessel in polyethylene portable tanks that have bottom outlets.

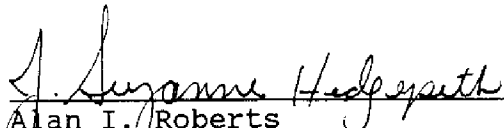
f. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

g. A copy of this exemption, in its current status, must be maintained each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

h. The provisions of 49 CFR 173.24(d) and 172.28(i) apply to portable tanks used for the shipment of poisonous materials.

- i. Consistent with the regulations adopted under Docket HM-181E for intermediate bulk containers (IBCs), exemptions for IBCs of the type covered by those regulations will not allow new construction after September 30, 1996. Existing IBCs may be continued in service, **provided renewal provisions under 107.105 are met**, until September 30, 1998 under the conditions specified in the exemption that applies to their use. After September 30, 1998, each IBC must conform to, and be certified as meeting, a UN IBC standard set forth in Subparts N and O of Part 178 of the Hazardous Materials Regulations (HMR; 49 CFR). A provision for approval of an equivalent IBC is specified in 49 CFR 178.801(i).
9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq, when applicable.
- No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.
12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

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Attention: DHM-31.

Dist: FHWA, FRA, USCG.